

NY.2 Permit Application Checklist

What the state rule entitles your permit office to demand, the numbers it fills in itself, and the New York values that make the model code book on your desk wrong.

Before you use this document

This is a process reference, not legal advice. New York adopts one Uniform Code for every parcel in the state outside New York City and then lets your permit office be one of three governments: your town, village or city; your county; or the Department of State. The code itself never lapses, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What does vary: the fee, the local law's exemption list, the electrical inspection agency your office has approved, and the frost, snow and wind numbers it has written into Table R301.2. Confirm every item with the office that will actually handle your parcel before you rely on it. Part 1203 sets no fee and no review clock. Where a number is the permit office's to set, this document gives you a line, not a guess.

WHAT THE APPLICATION MUST CONTAIN — THE STATE FLOOR

Every code enforcement program in the state — town, county or DOS — must require at least this. Your office's local law may add to it, and “may adopt provisions for administration and enforcement that are more stringent than the minimum standards” (19 NYCRR § 1203.3). It may not require less.

The Part 1203 floor for a building permit application

Item	What the rule requires	Authority
The application	A description of the location, nature, extent and scope of the work; the tax map number and street address; the occupancy classification; where applicable, a statement of special inspections (this is where your electrical agency goes); construction documents; any submittal the codes require; and anything else the office “may deem necessary.”	19 NYCRR § 1203.3(a)(2)
The drawings	“Drawn to scale on suitable material or in electronic media,” and where applicable showing: the means of egress; “a representation of the building thermal envelope ”; structural information “including but not limited to braced wall designs ; the size, section, and relative locations of structural members; design loads”; every service system; and “a written statement indicating compliance with the Energy Code. ”	19 NYCRR § 1203.3(a)(3)

The Part 1203 floor for a building permit application

Item	What the rule requires	Authority
The site plan	“A site plan, drawn to scale and drawn in accordance with an accurate boundary survey , showing the size and location of new construction and existing structures and appurtenances on the site; distances from lot lines; the established street grades and the proposed finished grades; and, as applicable, flood hazard areas, floodways, and design flood elevations.” A sketch on the deed plat is not this.	19 NYCRR § 1203.3(a)(3)(viii)
The stamp, when one is required	Evidence that the documents were prepared by a New York licensed architect (Ed. Law Art. 147) or engineer (Art. 145): the seal, the signature, the registration expiration date, and the firm's Certificate of Authorization number where a firm rather than a sole practitioner submits. When a stamp is required is the next section.	19 NYCRR § 1203.3(a)(3)(ix)

Three things the rule does not do

No fee. Part 1203 carries no fee schedule; the DOS model local law says a fee schedule “shall be established by resolution” of the legislative body. **No review clock.** Nothing in Part 1203 or Article 18 sets a number of days for plan examination. **No mandatory exemption list.** The eight categories the rule lets an office exempt — one-story accessory sheds to **144 sq ft**, window awnings, finish work, listed portable appliances, like-for-like equipment replacement, non-structural repairs — are exempt only *if your municipality adopted the exemption* (§ 1203.3(a)(1)), and “an exemption from the requirement to obtain a building permit shall not be deemed an authorization for work to be performed in violation” of the codes. Ask your office for its fee, its review time and its exemption list, and write the answers on the permit record at the end.

BEFORE ANYTHING ELSE: THE CE-200 OR THE CARRIER FORMS

General Municipal Law § 125 forbids any city, town or village to issue a building permit without carrier proof of coverage or an affidavit of no employees (NY.1). Do this first: the certificate is **job-specific** and takes an online account to obtain.

- ☐ I created a NY.gov Business account at **businessexpress.ny.gov** and applied for Form CE-200 under **Apply as a Homeowner** — or, if I carry a policy, asked my carrier to send Forms C-105.2 and DB-120.1 to the permit office.
- ☐ I printed and signed the CE-200 and recorded its number. I know it covers **this permit only**, and a separate certificate is needed for any later permit.
- ☐ From every trade I hire, I am collecting a C-105.2 and DB-120.1 naming me as certificate holder — **not an ACORD certificate**, which the Board says is not acceptable proof.

STAMPED PLANS — THE 1,500 SQUARE FOOT RULE

This is a state law, and it applies whichever government issues your permit. Education Law § 7307(5) (architecture) provides that the article “shall not apply to ... **residence buildings of gross area of fifteen hundred square feet or less, not including garages, carports, porches, cellars, or uninhabitable basements or attics.**” Section § 7209(7)(b) (engineering) carries the same exclusion. Above that line, § 7307(1) and § 7209(1) forbid any state, county, city, town or village official to “accept or approve any plans or specifications that are not stamped” by a New York-licensed architect or engineer.

Who must draw your house

Size	What the law requires	Authority
More than 1,500 sq ft gross	Architect- or engineer-stamped drawings, statewide. Gross area excludes the garage, carport, porches, cellar and any uninhabitable basement or attic — so a 1,400 sq ft house on a full unfinished basement is under the line.	Ed. Law § 7307(5); § 7209(7)(b)
1,500 sq ft or less	The state does not require a stamp — but the code hands the question back to your office. Documents “shall be prepared by a registered design professional when required by Article 145 or Article 147 ... by the stricter of Code Enforcement Program of the authority having jurisdiction or a Part 1203-Compliant Code Enforcement Program, or by any other applicable law.” Ask whether the local law requires one.	2025 RCNYS [NY] R106.6
Either way	The office may still demand “structural information including ... braced wall designs” (§ 1203.3(a)(3)(v)), and any site with a ground snow load above 70 psf must be “designed in accordance with accepted engineering practice” — see below. Separately, the office “may waive the requirement for construction documents where a registered design professional is not required by law” and the work is minor.	2025 RCNYS [NY] R301.2.3; [NY] R106.1

Article 147 is architecture, Article 145 engineering. Education Law § 7306(1)(c) separately confirms that “builders, or superintendents employed by such builders” may supervise construction without an architect — so the stamp is about the drawings, not about who swings the hammer.

TABLE R301.2 — THE NUMBERS YOUR OFFICE FILLS IN

Every residential code has a Table R301.2 of climatic and geographic design criteria. In New York the table is blank until the permit office fills it. [NY] R301.2: “Additional criteria shall be established by the authority having jurisdiction and set forth in Table R301.2.” The footnotes are explicit — note b: “The authority having jurisdiction shall fill in the **frost line depth** column with the minimum depth of footing below finish grade.” Note d: the AHJ “shall fill in this part of the table with the **wind speed** from the ultimate design wind speeds map.” Note o: the AHJ “shall fill in this section ... using the **Ground Snow Loads** in Figure R301.2(3) in accordance

with Section R301.2.3.”

So there is no statewide frost depth, and this kit prints none

Guides that print “36 inches south of the Catskills, 42 inches upstate, 48 inches in the North Country” are describing local custom. The number that binds your footings is the one your office wrote into its Table R301.2 — ask for the table, and copy it below. Where DOS is the permit office, 19 NYCRR § 1202.12 reverses the burden: **you** supply “ground snow load; wind design loads; seismic design category; potential damage from weathering, frost, and termite; winter design temperature; whether ice barrier underlayment is required; the air freezing index; and the mean annual temperature,” and if the town never set them, a licensed architect or engineer establishes them (§ 1202.12(b)).

My office's Table R301.2 — copy every entry

	Item	Date	Notes
☐	Frost line depth (minimum footing depth below finish grade): Inches _____ Source _____		
☐	Ground snow load, allowable stress design, for this parcel: psf _____ Elevation surcharge applied? _____		
☐	Ultimate design wind speed, and whether the parcel is in a windborne-debris region: mph _____ Debris region? _____		
☐	Seismic design category; weathering; termite: Seismic _____ Weathering _____ Termite _____		
☐	Winter design temperature; ice barrier underlayment required?; air freezing index; mean annual temperature: Winter °F _____ Ice barrier _____ AFI _____ Mean °F _____		
☐	Flood hazard: FIRM panel and date, zone, and design flood elevation if any: Panel _____ Zone _____ DFE _____		

SNOW — THE NUMBER THAT FORCES AN ENGINEER

2025 RCNYS [NY] R301.2.3 Snow loads — the operative sentences

“Ground snow loads shall be the larger of those determined in accordance with Figure R301.2(3) and Figure R302.2(4) [sic — the figure is R301.2(4)], or shall be determined in accordance in with Section 1608 of the Building Code of New York State.

Wood-framed construction ... in regions with allowable stress design ground snow loads, $pg(asd)$, **70 pounds per square foot** (3.35 kPa) or less, shall be in accordance with Chapters 5, 6 and 8. Buildings in regions with allowable stress design ground snow loads, $pg(asd)$, **greater than 70 pounds per square foot** (3.35 kPa) shall be designed in accordance with accepted engineering practice.”

And the elevation surcharge, Figure R301.2(4) Note 1: “For sites at elevations above 1,000 feet (304.8 m), the ground snow load shown in Figure 301.2(4) shall be increased from the mapped value by **2 psf** (0.096 kN/m²) for every **100 feet** (30.48 m) above 1,000 feet (304.8 m).”

Read it as an instruction. Pull both figures for the parcel — Figure R301.2(3) Note 1 points to the ASCE 7 Hazard Tool geodatabase (asce7hazardtool.online) and Figure R301.2(4) is the New York map — add 2 psf per 100 ft above 1,000 ft to the mapped value, and take the larger. Over 70 psf the prescriptive framing chapters no longer apply and the roof needs an engineer whatever the house's size. The 70 psf figure is a **statewide code threshold**, not any county's policy, and this kit prints no county list — a hillside lot in a valley county can cross it on the surcharge alone.

ENERGY — NEW YORK'S OWN VALUES, NOT THE MODEL CODE'S

19 NYCRR § 1240.4(a) adopts the 2025 ECCCNY Residential Provisions. The book carries New York values tagged [NY], and they differ from the 2024 IECC in the two places guide-writers copy from: the ceiling stays at **R-49** (the model code is R-60 in Zones 5–6) and the window U-factor is **0.27** (the model code is 0.30). Build to a national reference and you will miss both. First, find your county's zone — the table is in the code, not on NYSERDA's website.

Climate zone by county — 2025 ECCCNY [NY] Table R301.1(1)

Zone	Counties
Zone 4	Bronx, Kings, Nassau, New York, Queens, Richmond, Suffolk, Westchester
Zone 6	Chenango, Clinton, Delaware , Essex, Franklin, Fulton, Hamilton, Herkimer, Jefferson, Lewis, Madison, Montgomery, Oneida, Otsego, St. Lawrence, Sullivan, Ulster , Warren
Zone 5	Every other county — Albany, Allegany, Broome, Cattaraugus, Cayuga, Chautauqua, Chemung, Columbia, Cortland, Dutchess, Erie, Genesee, Greene, Livingston, Monroe, Niagara, Onondaga, Ontario, Orange, Orleans, Oswego, Putnam, Rensselaer, Rockland, Saratoga, Schenectady, Schoharie, Schuyler, Seneca, Steuben, Tioga, Tompkins, Washington, Wayne, Wyoming, Yates

Note that **Ulster, Sullivan and Delaware are Zone 6** — the Catskills, not just the North Country — and Westchester is Zone 4 with Long Island. The zone decides the air-leakage limit below.

Insulation minimum R-values — 2025 ECCCNY [NY] Table R402.1.3, identical in Zones 4, 5 and 6

Component	Zones 4, 5, 6
Ceiling	R-49
Insulation entirely above roof deck	R-30 ci
Wood-framed wall	R-30 , or 20&5ci, or 13&10ci, or 0&20ci
Floor	R-30, or 19&7.5ci, or 20ci
Basement wall	15ci, or 19, or 13&5ci
Unheated slab	R-10ci, 4 ft
Heated slab	R-10ci, 4 ft and R-10 full slab
Crawl space wall	15ci, or 19, or 13&5ci
Vertical fenestration U-factor	0.27 (0.30 only above 4,000 ft or in windborne-debris regions, Zones 5–6)
Skylight U-factor	0.50
Glazed fenestration SHGC	0.40 in Zones 4 and 5; not required in Zone 6

“13&5ci” means R-13 cavity plus R-5 continuous. The U-factor alternative, [NY] Table R402.1.2: fenestration 0.27, ceiling 0.026, wood-frame wall 0.045, floor 0.033, basement wall 0.050, crawl space wall 0.055. R402.2.1 lets full-height uncompressed R-38 over the top plate satisfy the R-49 ceiling requirement in the prescriptive path.

The blower door is mandatory, and the limit depends on your zone

[NY] R402.5.1.3: the air leakage rate “shall be not greater than **3.0 air changes per hour in Climate Zones 4 and 5**, or 0.19 cubic foot ... of the building thermal envelope area; and not greater than **2.5 air changes per hour in Climate Zone 6**, or 0.16 cubic foot ... of the building thermal envelope area.” Exception 2: a building of 1,500 sq ft or less of conditioned floor area may instead meet 0.27 cfm per square foot of enclosure area.

[NY] R402.5.1.2: “The building or each dwelling unit ... shall be tested for air leakage ... Where required by the building official, testing shall be conducted by an approved third party. A written report ... shall be ... provided to the building official.” That written report is a **certificate-of-occupancy precondition**: the office may not issue the CO until it has “received and reviewed each written statement of the results of tests performed to show compliance with the Energy Code” (19 NYCRR § 1203.3(d)(2)(iv)).

Three compliance paths ([NY] R401.2): prescriptive (R401–R404 *and* the R408 additional efficiency package), simulated performance (R405), or Energy Rating Index (R406). Whichever you use, a permanent R401.3 certificate goes up at the furnace or utility room — NY.3 lists what it must show.

NYStretch. NYSEDA's stretch energy code is adopted municipality by municipality, and in September 2026 NYSEDA's site still offered the **2020** edition and said only that updates are “planned.” No statewide list of adopting municipalities is published. Ask your office whether it has adopted NYStretch and which edition; this kit prints nothing further about it.

ELECTRICAL — NAME THE AGENCY ON THE APPLICATION

The application's “statement of special inspections” (§ 1203.3(a)(2)(iv)) is where the electrical inspector is named, and the office may accept a special inspection only from a person “employed or retained by an agency that has been approved by the authority having jurisdiction” (§ 1203.2(e)(4)). **There is no state list.** Ask the office for its list, engage an agency, and put the name on the application. The Electrical Part is NEC 2023-based statewide (Chapters 34–43), limited to 120/240-volt, 0- to 400-ampere single-phase services (E3401.2).

The electrical track, before you file

	Item	Date	Notes
☐	Approved agencies the office will accept, and the one I engaged: Agency _____		
☐	Whether the local law lets a homeowner wire an owner-occupied house, and any local electrician license law: Own wiring? _____ License law? _____		

SPRINKLERS, ALARMS, FLOOD, SOLID FUEL — WHAT NEW YORK CHANGED

Five New York amendments a national code book will not show you

Provision	What New York says	Authority
Sprinklers at three stories	“An automatic sprinkler system shall be installed in one- and two-family dwellings where such dwellings have a height of three stories above grade plane. ” A one- or two-story house needs none — but a walk-out basement counts as a story if its ceiling is more than 6 ft above grade plane, more than 6 ft above finished ground for over half the perimeter, or more than 12 ft at any point. Townhouses also at any height with a public water main available.	2025 RCNYS [NY] R309.1, R309.2; 19 NYCRR § 1219.2(a)(18)

Five New York amendments a national code book will not show you

Provision	What New York says	Authority
Heat detection in the garage	Smoke alarms in the dwelling per NFPA 72, and “heat detection shall be provided in new attached garages” — a New York addition. Carbon monoxide alarms per Fire Code § 915; the statutory floor is a CO detector in every dwelling with a fuel-burning appliance or attached garage.	2025 RCNYS [NY] R310.2.1, R311; Exec. Law § 378(5-a)
Flood — wider than the model code	Flood-resistant construction applies in “A Zones, shaded X Zones, B Zones , Coastal A Zones, and V Zones.” The model code stops at the A and V zones. If your FIRM shows shaded X, you are inside it.	2025 RCNYS [NY] R306.1
Wood stove — a second permit	Any solid fuel-burning appliance, chimney or flue needs its own permit, inspection and certificate of compliance before it is operated ; the statute sets a fine of not more than \$250.	2025 RCNYS [NY] R115; Exec. Law § 378(5-c)
Radon: not required	Appendix BE Radon Control Methods is “included for informational purposes” — not adopted, and a town cannot adopt it without Code Council approval (Exec. Law § 379). Appendix BB Tiny Houses IS adopted ; strawbale, cob and hemp-lime are informational, via written alternative-method approval.	2025 RCNYS [NY] R101.2.1; [NY] R104.2.2

The 2025 RCNYS renumbered Chapter 3: sprinklers are **R309**, smoke alarms R310, carbon monoxide R311, flood R306. A reference to “R313” for sprinklers is the 2020 numbering and is wrong in the 2025 book.

SEPTIC AND WELL — SETTLE THESE BEFORE THE FOOTPRINT

Both are inside the Uniform Code by reference — [NY] P2602.1.2 incorporates the Health Department's Appendix 75-A for septic and [NY] P2602.1.1 incorporates Appendix 5-B for wells — and both are approved by the county health department or DOH district office, not the building office (NY.4 has the routing). Two rules decide who does the work: septic plans “**shall be prepared directly by or under the supervision of a design professional**” (10 NYCRR § 75.5(b)), and private wells “**shall be installed by a well driller registered with the Department of Environmental Conservation**” ([NY] P2602.1.1). You may not design the one or drill the other.

The numbers that fix where the house can sit

Item	Rule	Authority
Design flow	“A minimum daily flow of 110 gallons per day per bedroom ” for new construction. A garbage grinder or an expansion attic counts as another bedroom.	App. 75-A § 75-A.3(b); § 75-A.6(a)
Tank	1,000 gal for 1–3 bedrooms; 1,250 for 4; 1,500 for 5; 1,750 for 6; +250 per bedroom beyond.	App. 75-A Table 3

The numbers that fix where the house can sit

Item	Rule	Authority
Absorption field distances	100 ft to a well or suction line; 100 ft to a stream, lake, watercourse or wetland ; 20 ft to the dwelling; 10 ft to the property line. Septic tank: 50 / 50 / 10 / 10. Well distances rise 50% where aquifer water enters the well less than 50 ft below grade (note g), and to 200 ft where the system is upgrade and in the direct drainage path to the well (note a). Plus a 50% reserve area “whenever possible.”	App. 75-A Table 2; § 75-A.4(a)(5)
Site disqualifiers	Below the 10-year flood level; slopes over 15% ; less than four feet of useable soil above rock or seasonal high groundwater; percolation faster than one minute per inch unless blended. Groundwater at least 2 ft below trench bottom.	App. 75-A § 75-A.4(a), (c)(2)
The well	Appendix 5-B Table 1 protects the well from the other direction: 100 ft from an absorption field, 50 ft from a septic tank, 25 ft from a stream or wetland, 200 ft from a cesspool, 300 ft from a salt pile — again +50% for a shallow well — and “a well shall be located upgradient of any potential or known source of contamination.” Appendix 5-B sets no well-to-property-line or well-to-house distance. The driller files a completion report with DEC and “shall provide a copy ... to the water well owner.”	App. 5-B Table 1; § 5-B.2(c); ECL § 15-1525(3)

10 NYCRR Appendix 75-A effective 16 March 2016; Appendix 5-B effective 23 November 2005. **Two overlays change these numbers for one house:** inside the Adirondack Park the leach field must be 100 ft from the mean high-water mark in every land use area, and inside the New York City watershed the field must be 100 ft from a watercourse or wetland and 300 ft from a reservoir, with the plans approved by the City's Department of Environmental Protection. NY.4 has both.

IF YOU HIRE A BUILDER FOR PART OF IT — ARTICLE 36-A

General Business Law Article 36-A is New York's home-improvement contract law, and unlike most states' it reaches a new house: “home improvement” “shall also mean **the construction of a custom home**” (§ 770(3)), and a custom home is “a new single family residence to be constructed on premises owned of record by the purchaser at the time of contract, provided that such residence is intended for residential occupancy by such purchaser” (§ 770(7)). A contract over **\$500** is covered (§ 770(4)). So an owner who contracts with a builder to erect the whole house on the owner's lot is buying a custom home, and the protections attach by statute.

What GBL § 771 requires the contract to say

Every such contract “shall be evidenced by a writing” containing, among other things: the contractor's name, address, telephone and license number if any; the approximate start and substantial-completion dates and whether completion is of the essence; a description of the work and materials and the agreed price; a bold notice that an unpaid contractor or subcontractor may file a mechanic's lien; a notice that the contractor must deposit all payments received before completion in escrow, or post a bond, contract of indemnity or irrevocable letter of credit; any progress-payment schedule, with amounts “bearing a reasonable relationship” to the work performed; the owner's right to cancel until midnight of the third business day; and the contractor's insurance disclosure. In plain English, with a signed copy to the owner before work begins (§ 771(2)).

The escrow is real. Lien Law § 71-a(4): payments received by a home improvement contractor “prior to the substantial completion of work ... shall be deposited within five business days ... in an escrow account,” unless the contractor posts “a bond or contract of indemnity ... or an irrevocable letter of credit.” A builder who takes your deposit into operating funds is breaking this section.

What this kit does not claim: that Article 36-A reaches a framing crew or an electrician you hire directly to build new — § 770(3)'s core definition is “repair, replacement, remodeling ... of residential property,” and new construction by trade is not squarely inside it. Use the § 771 list as the benchmark for every trade contract anyway. Several counties license home-improvement contractors and most of those laws exclude a new home; Westchester's does not — NY.4.

PERMIT RECORD — FILL THIS IN AS EACH ONE ISSUES

Every approval on this build

	Item	Date	Notes
☐	Form CE-200 (or carrier forms C-105.2 / DB-120.1) filed with the application: CE-200 number _____ Date _____		
☐	Building permit — rung, number, fee paid, expiration date and the deadline to commence if the local law sets one: Rung _____ Number _____ Fee _____ Expires _____		
☐	Stamped plans — architect or engineer, registration number and expiration: Professional _____ Reg. exp. _____		

Every approval on this build

	Item	Date	Notes
☐	Septic — design professional's plan approved by the county health department or DOH district office: Approval _____ Date _____		
☐	Well — DEC-registered driller, registration number, and completion report received: Driller reg. _____ Report date _____		
☐	Electrical agency engaged and named on the statement of special inspections: Agency _____		
☐	Zoning / site plan approval , if separate, and the driveway permit from whichever road authority: Zoning ref. _____ Driveway _____		
☐	Floodplain determination — zone (including shaded X): Zone _____ Who confirmed _____		
☐	Adirondack Park Agency permit or NYC DEP watershed approval , if the parcel is inside either: Which _____ Reference _____		
☐	Certificate of occupancy — and the solid-fuel certificate of compliance, if any: CO number _____ Date _____ Solid-fuel cert. _____		

Everything cited here is free to read, in three places. Statutes are at nysenate.gov/legislation/laws/EXC/381 — swap **EXC** for **GMU, WKC, EDN, GBS, LIE** or **LAB** and the number for the section. The rules (19 NYCRR Parts 1202, 1203, 1205, 1219–1229, 1240) are the Department of State's own rule-text PDFs at dos.ny.gov. The 2025 code books are free at codes.iccsafe.org/content/NYSRC2025P1 (residential) and [NYSECC2025P1](https://codes.iccsafe.org/content/NYSECC2025P1) (energy). **One warning:** the code is the regulation plus the book, and Westlaw's NYCRR still showed the 2020 edition for Parts 1219–1229 nine months after the 2025 rule took effect — read the DOS PDFs, not Westlaw. Read September 2026.